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General Knowledge

Indian Polity

STUDY NOTES

CHIEF MINISTER & STATE COUNCIL OF MINISTERS

CHIEF MINISTER & STATE COUNCIL OF MINISTERS

INTRODUCTION:

- Governor - **nominal executive authority** - head of the State
- Chief Minister - **real executive authority** - head of the government.

APPOINTMENT OF THE CHIEF MINISTER

- No specific procedure is mentioned in the Constitution
- **Article 164** = Chief Minister shall be appointed by the governor.

Conventions:

- Leader of the majority party in the Legislative Assembly as the CM.
- **When no party has a clear majority in the State Legislative Assembly the Governor may exercise his discretion**.
- Appoint the leader of the largest party or coalition in the assembly and ask him to seek a vote of confidence in the House within a month.
- **When the Chief Minister in office dies suddenly and there is no obvious successor, then the Governor can exercise his discretion in appointing the CM.**
- On the death of a Chief Minister, the ruling party usually elects a new leader and the governor has no choice but to appoint him as Chief Minister.
- **The Constitution does not require that a person must prove his majority in the legislative assembly before he is appointed as the Chief Minister**.
- The governor may first appoint him as the CM and then ask him to prove his majority in the legislative assembly within six months failing which he ceases to be the CM
- The Chief Minister may be a member of any of the two Houses of a state legislature.

OATH, TERM AND SALARY

- The governor administers to the CM the oaths of office and secrecy.
- In his oath of office, the Chief Minister swears:
    - to bear true faith and allegiance to the Constitution of India,
    - to uphold the sovereignty and integrity of India,
    - to faithfully and conscientiously discharge the duties of his office, and

- to do right to all manner of people following the Constitution and the law, without fear or favour, affection or ill-will.

- In his **OATH OF SECRECY,** the Chief Minister swears that he will not directly or indirectly communicate or reveal to any person(s) any matter that is brought under his consideration or becomes known to him as a state minister except as may be required for the due discharge of his duties as such minister.

TERM

- Not fixed
- Holds office during the pleasure of the governor.
- He cannot be dismissed by the governor as long as he enjoys the majority support in the legislative assembly.
- But, if he loses the confidence of the assembly, he must resign or the governor can dismiss him.

SALARY

- Salary: of a member of the state legislature
- Determined by the state legislature.

POWERS AND FUNCTIONS OF THE CHIEF MINISTER

IN RELATION TO THE COUNCIL OF MINISTERS

- He allocates and reshuffles various portfolios among the ministers.
- He can ask a minister to resign or advise the Governor to dismiss him.
- He presides over the meeting of the council of ministers.
- The resignation or death of an incumbent Chief Minister automatically dissolves the council of ministers and thereby generates a vacuum.
- The resignation or death of any other minister creates a vacancy that the Chief Minister may or may not like to fill.

IN RELATION TO STATE LEGISLATURE

- He advises the Governor regarding summoning and proroguing the sessions of
- He can recommend dissolution of the legislative assembly to the Governor at any time.
- He announces government policies on the floor of the House.

OTHER POWERS AND FUNCTIONS

- crisis manager-in-chief at the political level during emergencies.

STATE COUNCIL OF MINISTERS

- **The Council of Ministers** headed by the chief minister is the real executive authority
- The **principles of the parliamentary system of government are not detailed in the Constitution**, but two **Articles (163 and 164)** deal with them

CONSTITUTIONAL PROVISIONS

ARTICLE 163—COUNCIL OF MINISTERS TO AID AND ADVISE GOVERNOR

- There shall be a Council of Ministers with the Chief Minister as the head to aid and advise the Governor in the exercise of his functions
- If any question arises whether a matter falls within the Governor's discretion or not, decision of the Governor shall be final **(NOT QUESTIONABLE)**
- The advice tendered by Ministers to the Governor shall not be inquired into in any court.

ARTICLE 164—OTHER PROVISIONS AS TO MINISTERS

- The Chief Minister shall be appointed by the Governor and the other Ministers shall be appointed by the Governor on the advice of the Chief Minister.
- **Total number of ministers** = max 15% of the total strength of the legislative assembly
    - **The number of ministers, including the chief minister, shall not be less than 12**. (91 CAA 2003).
- **A member** of either House of State legislature who is **disqualified on the ground of defection shall also be disqualified from being appointed as a minister**. (91st CAA of 2003).
- **Ministers shall hold office at the pleasure of the Governor**.

ARTICLE 177—RIGHTS OF MINISTERS AS RESPECTS THE HOUSES

- **Every minister shall have the right to speak and take part in the proceedings of the Assembly (and also the Council where it exists) and any Committee of the State Legislature of which he may be named a member. But he shall not be entitled to vote**

NATURE OF ADVICE BY MINISTERS

- The nature of advice tendered by ministers to the governor cannot be enquired by any court.
- **A council of ministers must always exist to advise the governor**, even after the dissolution of the state legislative assembly or the resignation of a council of ministers. Hence, **the existing ministry may continue in the office until its successor assumes charge.**

APPOINTMENT OF MINISTERS

- There should be a tribal welfare minister in Chhattisgarh, Jharkhand, Madhya Pradesh and Odisha
- **A person who is not a member of either House of the state legislature can also be appointed as a minister. But, within six months, he must become a member (either by election or by nomination) of either House of the state legislature, otherwise, he ceases to be a minister.**

OATH AND SALARY OF MINISTERS

- The governor administers to the ministers the oaths of office and secrecy.
- In his Oath Of Office, the minister swears:
    - to bear true faith and allegiance to the Constitution of India,
    - to uphold the sovereignty and integrity of India,
    - to faithfully and conscientiously discharge the duties of his office, and
- to do right to all manner of people in accordance with the Constitution and the law, without fear or favour, affection or ill-will.

Oath Of Secrecy - the minister swears that he will not directly or indirectly communicate or reveal to any person(s) any matter that is brought under his consideration or becomes known to him as a state minister except as may be required for the due discharge of his duties as such minister.

SALARY

- Determined by the state legislature.
- **SALARY:** of a MLA

RESPONSIBILITY OF MINISTERS

COLLECTIVE RESPONSIBILITY

- The **ministers own joint responsibility to the legislative assembly for all their acts of omission and commission**.

- **When the legislative assembly passes a no-confidence motion against the council of ministers, all the ministers have to resign including those ministers who are from the legislative council.**
    - It is the duty of every minister to stand by the cabinet decisions
    - If any minister disagrees with a cabinet decision he must resign.
    - Several ministers have resigned in the past owing to their differences with the cabinet

INDIVIDUAL RESPONSIBILITY

- **Article 164** also contains the principle of individual responsibility.
- It states that the ministers hold office during the pleasure of the governor. This means that **the governor can remove a minister at a time when the council of ministers enjoys the confidence of the legislative assembly**. But, **the governor can remove a minister only on the advice of the chief minister**.

NO LEGAL RESPONSIBILITY

- Unlike Britain, in India, **there is no provision in the constitution for the system of legal responsibility of a minister**
- It is not required that an order of the Governor for a public act should be countersigned by a minister.

COMPOSITION OF THE COUNCIL OF MINISTERS

- **The size of the state council of ministers or the ranking of ministers is determined by the chief minister and not by the constitution**
- The Council of Ministers consists of three categories of ministers, namely,
    - **CABINET MINISTERS,**
    - **MINISTERS OF STATE**
    - **DEPUTY MINISTERS**
- **At the top of all these ministers stands the chief minister**—the supreme governing authority in the state

CABINET MINISTERS

- They head the important ministries of the Central government like home, defence, finance, external affairs and so forth.
- They are members of the cabinet, attend its meetings and play an important role in deciding policies.

MINISTERS OF STATE

- They are either given independent charge of ministries/departments or can be attached to cabinet ministers.
- **They are not members of the cabinet and do not attend the cabinet meetings** unless specially invited.

DEPUTY MINISTERS.

- They are not given independent charge of ministries/departments.
- They are attached to the cabinet ministers or ministers of state
- They are not members of the cabinet and do not attend cabinet meetings

CABINET

- A smaller body called cabinet is the nucleus of the council of ministers.
- It consists of only the cabinet ministers.
- It performs the following role :
    - Supreme executive authority of the state government.
    - It is an advisory body to the governor.
    - It is the chief crisis manager and thus deals with all emergency situations.
    - It deals with all major legislative and financial matters.
    - It exercises control over higher appointments like constitutional authorities and senior secretariat administrators.

CABINET COMMITTEES

- The cabinet works through various committees called cabinet committees.
- They are of two types—
    - **STANDING** - permanent nature
    - **AD HOC** - temporary nature.
- They are set up by the chief minister according to the exigencies of the time and requirements of the situation.
- They not only sort out issues and formulate proposals for the consideration of the cabinet but also take decisions.
- The cabinet can review their decisions.

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